

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 17, 2026 TIME: 8:30 A.M.

No. 25CV02436

BANK OF AMERICA, N.A. v. FARLEY

DEFENDANT'S MOTION TO DISMISS

**PLAINTIFF'S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR
ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED**

The motion to dismiss is denied. The motion for an order deeming admitted the truth of facts in the request for admissions is granted unless defendant provides proof of service of responses in substantial compliance with Code of Civil Procedure section 2033.220.

I. BACKGROUND AND MOTIONS

This is a collections case based upon unpaid credit card debt. Plaintiff seeks \$18,530.54 and alleged breach of contract. On September 19, 2025, self-represented defendant filed an answer, arguing plaintiff failed to provide a signed contract.

Plaintiff filed a motion to deem admitted certain requests for admission. The hearing on this motion occurred on July 20, 2025. The court's tentative ruling was to grant the motion. However, plaintiff's counsel failed to appear at the hearing and the court noted that defendant had filed a motion to dismiss which was pending. The court continued the discovery hearing August 17, 2026, along with defendant's motion to dismiss.

A. Defendant's motion to dismiss

First, defendant failed to file a proof of service showing that the motion was served on defendant. "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Proof of service of the moving papers must be filed no later than five court days before the hearing date. (Code of Civ. Proc. § 1005, subd. (b); Cal. Rules of Ct., rule 3.1300(c).)

Even assuming the motion was properly served, it would be denied. Defendant asks the court to dismiss the case based upon "lack of evidence" of a signed promissory note and/or signed contract or agreement. Defendant asserts she was the victim of identity theft. It appears defendant is seeking the court to summarily adjudicate plaintiff's claims. However, she did not bring a motion for summary judgment. The motion to dismiss is denied for these reasons.

B. Plaintiff's motion to deem admitted requests for admissions

On December 12, 2025, plaintiff served requests for admission set one, on defendant, attached to the declaration of Smita Suman as Exhibit 1. Plaintiff states defendant has failed to

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 17, 2026 TIME: 8:30 A.M.

respond to the requests. (Decl. of Suman at ¶ 3.) The requests were served on defendant at 5888 Fern Flat Rd., Aptos, CA, which is the same address defendant used when filing her answer.

Defendant filed an opposition on June 30, 2026, arguing that she does not have an obligation or legal duty to respond to the requests because plaintiff has not provided a valid contract. Defendant does not provide a reason for her failure to respond to the requests. In addition, there is no proof that defendant served her opposition on plaintiff.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

In a supplemental opposition, filed on August 6, 2026, defendant asserted she answered and responded to all interrogatories. She did not file a copy of the responses nor proof of service the same and the court does not have any input from plaintiff’s counsel as to whether they did receive responses to the requests. Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Suman as Exhibit 1, will be deemed admitted unless defendant provides proof she served responses in substantial compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (b).)

No. 25CV02254

CHASE BANK, N.A. v. FARLEY

DEFENDANT’S MOTION TO DISMISS

**PLAINTIFF’S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR
ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

The motion to dismiss is denied. The motion for an order deeming admitted the truth of facts in the request for admissions is granted unless defendant provides proof of service of responses in substantial compliance with Code of Civil Procedure section 2033.220.

I. BACKGROUND AND MOTIONS

This is a credit card collections case. Plaintiff seeks damages in the amount of \$60,649.50 based upon breach of contract. Defendant, who is self-represented, filed her answer on August 21, 2025.